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General Knowledge

Indian Polity

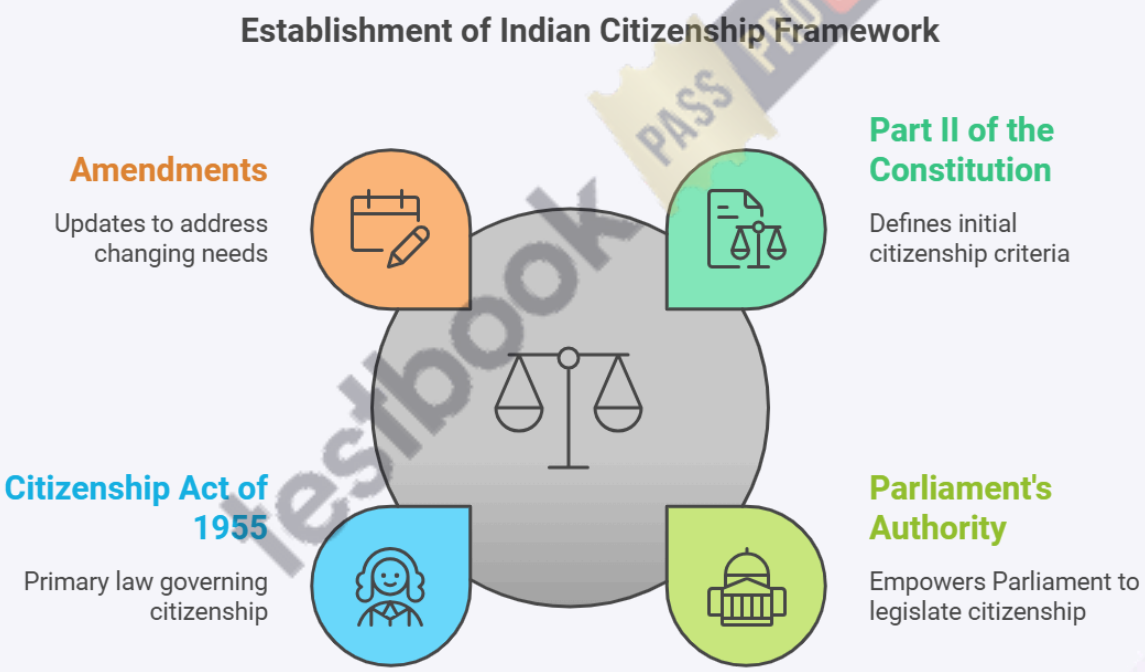
STUDY NOTES

Citizenship

CITIZENSHIP

Introduction

- Part II of the Indian Constitution **(Articles 5–11)** outlines the provisions related to citizenship as of its commencement on **January 26, 1950.**
- While it defines the criteria for **Indian citizenship** at the time of inception, it does not address the rules for acquiring or losing citizenship thereafter.
- The Constitution delegates the authority to Parliament to legislate on matters related to the acquisition, loss, and regulation of citizenship.
- Subsequently, Parliament enacted the **Citizenship Act of 1955**, which serves as the primary law governing citizenship in India.
- This Act has been amended multiple times to address changing needs, with significant changes in **1957, 1960, 1985, 1986, 1992, 2003, 2005, 2015, and 2019**.



Citizenship Overview:

Rights of Citizens and Aliens

- In any modern nation, people are broadly classified into two groups:
- **Citizens:**
    - Full members of the state with allegiance to it.
    - Entitled to enjoy all civil and political rights.

- **Aliens:**
  - Citizens of other states.
  - Lack several **civil** and **political** rights enjoyed by citizens.
- **Categorized into:**
  - **Friendly Aliens:** Belong to nations with amicable ties to India.
  - **Enemy Aliens:** Belong to nations at war with India and face restricted rights.
- **Rights Exclusive to Indian Citizens**
  - Protection against discrimination on religion, race, caste, sex, or place of birth (**Article 15**).
  - Equal opportunity in public employment (**Article 16**).
  - Freedom of speech, assembly, association, movement, residence, and profession (Article 19).
  - Protection of language, script, and culture (**Articles 29–30**).
  - Right to vote, contest elections, and hold key public offices, including the **President**, **Vice-President**, **Judges of the Supreme** and **High Courts, Governors, Attorney General, and Advocate General.**

Constitutional Provisions for Citizenship at Commencement

The following categories of people were recognized as Indian citizens at the inception of the Constitution:

- **Article 5:** Individuals domiciled in India who were either **born** in India, had Indian parents, or had been residing in India.
- **Article 6:** Migrants from Pakistan before **July 19, 1948**, were granted citizenship, provided they had Indian parentage or registered.
- **Article 7:** Those who migrated to Pakistan post-March 1, 1947, but later returned under specific conditions.
- **Article 8:** People of Indian origin **residing abroad** could acquire citizenship through registration.

Additional Provisions:

- **Article 9:** Citizenship is forfeited if an individual voluntarily acquires foreign citizenship.
- **Article 10:** Citizenship is upheld unless explicitly altered by parliamentary legislation.

- **Article 11:** Parliament is empowered to legislate on all citizenship-related matters.

Citizenship Act, 1955: Acquisition and Loss

This Citizenship Act provides five modes for acquiring Indian citizenship:

- **By Birth:** Restricted to those born in India, with exclusions for children of foreign diplomats and enemy aliens.
- **By Descent:** Applicable to those born outside India, provided their birth is registered at an Indian consulate within a year, with exceptions for holding foreign citizenship.
- **By Registration:** Available to persons of Indian origin, spouses of Indian citizens, and others fulfilling specific residency and allegiance requirements.
- **By Naturalization:** Granted after meeting strict criteria such as residency (12 months immediately before application), language proficiency, and good character.

Special provisions exist for those contributing significantly to science, art, literature, or world peace.

- **Incorporation of Territory:** Applied when a foreign territory merges with India, such as **Pondicherry** in **1962**.

Loss of Citizenship

Citizenship can be lost in three ways:

- **Renunciation:** A voluntary declaration by an individual, extended to their minor children.
- **The declaration can be suspended during wartime.**
- **Termination:** Automatic loss occurs when an individual acquires foreign citizenship voluntarily.
- **Deprivation:** Enforced by the government for reasons such as fraud, disloyalty, or prolonged absence from India.

Key Amendments to the Citizenship Act

- 1985: Addressed illegal immigration in Assam following the Assam Accord.
- 2003: Introduced Overseas Citizenship of India (OCI).
- 2019: Fast-tracked citizenship for persecuted minorities from Afghanistan, Pakistan, and Bangladesh.

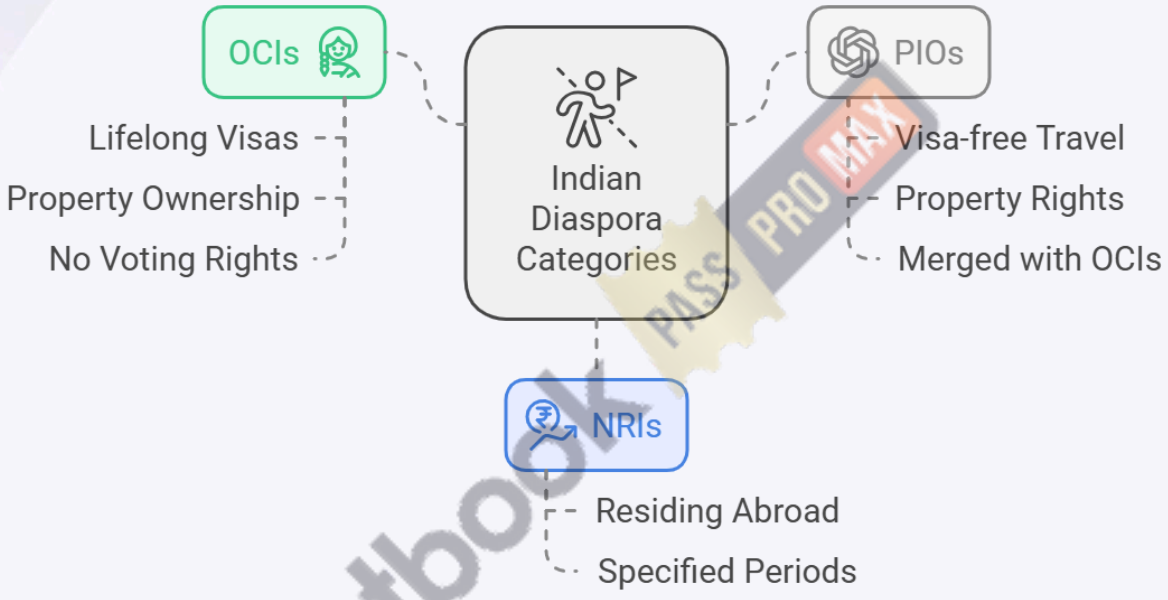
Notable Provisions of CAA 2019:

- Simplified citizenship for Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians fleeing persecution in the specified countries.

- Reduced the residency requirement from 11 years to 5 years for these groups.
- Excluded Muslim migrants and regions under the Sixth Schedule or Inner Line Permit from its provisions.

Categories of Overseas Indians

- Non-Resident Indians (NRIs): Indian citizens residing abroad for specified periods.
- Overseas Citizens of India (OCIs): Individuals of Indian origin with significant rights like lifelong visas and property ownership, but no voting rights.
- Persons of Indian Origin (PIOs): Now merged with OCI, they enjoyed visa-free travel and property rights.



Single Citizenship: India follows the principle of single citizenship, where allegiance is owed solely to the Union of India. Unlike the USA, dual citizenship is not recognized.

Citizenship Provisions: Assam Accord and Related Legislation

The Citizenship (Amendment) Act, 1985, enacted after the Assam Accord, introduced special provisions for citizenship concerning the issue of foreigners in Assam:

Citizenship for Pre-1966 Migrants:

- Individuals of Indian origin who entered **Assam** from **Bangladesh** before **January 1, 1966**, and have been residents in Assam since their arrival were recognized as Indian citizens.

Citizenship for Migrants Between 1966 and 1971:

- Individuals of Indian origin who arrived in Assam from Bangladesh on or after **January 1, 1966**, but before **March 25, 1971**, were required to register themselves as foreigners.
- Such individuals would be granted citizenship after 10 years from the date of detection as a foreigner, provided they continued to reside in Assam.
- During these 10 years, they held the same rights and responsibilities as Indian citizens, except the right to vote.

Citizenship Amendment Act, 2019 (CAA)

The **Citizenship Amendment Act, of 2019**, was enacted to address the issue of illegal migrants belonging to persecuted religious minorities from **Bangladesh, Pakistan,** and **Afghanistan.**

Eligibility:

- Persecuted minorities (Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians) from the specified countries can apply for Indian citizenship.
- Excludes Muslim migrants from these countries.

Residency Relaxation:

- Reduces the naturalization residency requirement for eligible groups from **11** years to 5 years.

Cut-off Date:

- Applicable to individuals who entered India on or before **December 31, 2014**.

Legal Immunity:

- Protects eligible individuals from legal proceedings related to illegal migration.
- Recognizes them as citizens from their date of entry into India.

OCI Provisions:

- OCI cardholders can lose their status for violating local laws, even for minor offenses.

CAA provisions do not apply to:

- Tribal areas of **Assam, Meghalaya, Mizoram, and Tripura**, as listed under the **Sixth Schedule** of the Constitution.
- Regions under the **Inner Line Permit** (ILP) system, including **Arunachal Pradesh**, **Mizoram, Nagaland,** and **Manipur**.

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